

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

NIELSEN & BAINBRIDGE, LLC, *Complainant*

v.

DOCKET NO. 25-02

EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC AGREEMENT No.011982); EVERGREEN MARINE CORPORATION (TAIWAN) LTD.; EVERGREEN MARINE (UK) LIMITED, ITALIA MARITTIMA SPA; EVERGREEN MARINE (HONG KONG) LTD.; EVERGREEN MARINE (SINGAPORE) PTE. LTD.; AND YANG MING MARINE TRANSPORT CORPORATION, *Respondents*.

Served: July 14, 2026

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

ORDER TO RESUBMIT THIRD JOINT MOTION TO EXTEND DEADLINES

On July 13, 2026, Complainant Nielsen & Bainbridge, LLC (“NBG”) and Respondents Evergreen Line Joint Service Agreement (FMC Agreement No. 011982); Evergreen Marine Corporation (Taiwan) Ltd.; Evergreen Marine (UK) Limited, Italia Maritima SpA; Evergreen Marine (Hong Kong) Ltd.; Evergreen Marine (SINGAPORE) Pte. Ltd. (collectively, “Evergreen”), and Yang Marine Transport Corporation (“Yang Ming”), filed a third joint motion to amend the discovery schedule and extend the remaining deadlines by 60-days; similarly, their second joint motion to extend scheduling deadlines sought a 60-day extension. The Second Amended Scheduling Order issued on May 15, 2026, and extended the discovery deadlines by 30-days due to Respondents’ delayed and extensive document production.

In the May 15, 2026, Second Amended Scheduling Order, I instructed the parties:

Rather than seeking further lengthy extensions, the parties are advised to stipulate to facts that are not in dispute and to narrow the issues between them....Further requests to extend the schedule are not likely to be granted absent a detailed statement of why the deadline cannot be met, and what the parties have done to narrow the issues.

Second Amended Scheduling Order at 2. In the current motion, the parties have not provided a detailed statement of why the deadlines cannot be met, nor have they provided any indication that they have narrowed the issues between them. Moreover, and contrary to the admonition in the Second Amended Scheduling Order, the parties are again seeking a lengthy extension.

The parties submit as good cause that they need to depose multiple witnesses, but despite the last extension of the scheduling order, it does not appear that they have scheduled any depositions. The parties also reference “potential” third party documents and witnesses, but no subpoenas have been requested by any party for third-party testimony or document production. Finally, the parties’ proposed 60-day extension includes a non-comital five-week period for expert reports “if any.” At this point in the proceeding, the parties should know if they intend to employ experts, and if they do not, the time reserved for expert reports and depositions could be used for more extensive fact witness testimony.

Accordingly, the parties are **ORDERED** to resubmit their motion¹ for an extension of the scheduling order that does not extend briefing beyond December 8, 2026, and provides detail regarding what the parties have done to narrow the issues, how many depositions have been scheduled, and for what dates.



Linda S. Harris Crovella
Administrative Law Judge

¹ The motion submitted by the parties incorrectly identifies the date Complainant provided witness names and the date of the previous scheduling order (“Complainant identified a corporate designee and **on July 26, 2026**, Complainant identified an initial list of ten current or former...”; “The Parties remain respectful of the deadlines set forth in the **April 10, 2026, Scheduling Order...**”) (emphasis added), while repeating citations to scheduling extensions issued by other presiding officers in cases over three and four years old that the parties have cited in each motion to extend. The errors should be corrected, and the parties should focus on establishing good cause in this proceeding.